



POLICE DEPARTMENT

July 6, 2011

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Lyndon Providence
Tax Registry No. 927377
Transit District 30
Disciplinary Case No. 86552/10

The above-named member of the Department appeared before me on March 4, 2011, charged with the following:

1. Said Police Officer Lyndon Providence, while assigned to Transit District #30, while off-duty, on or about July 8, 2009, failed to safeguard his off-duty firearm, in that said firearm was in its manufacturer's box located on top of his safe.

P.G. 204-08, Page 2, Paragraph 7 – FIREARMS GENERAL REGULATIONS

The Department was represented by Javier Seymore, Esq., Department Advocate's Office, and Respondent was represented by Craig Hayes, Esq.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Guilty.

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SUMMARY OF EVIDENCE PRESENTED

Respondent was a victim of burglary on July 8, 2009 at his residence, during which time his off-duty firearm as well as other personal property were stolen. After reporting his firearm missing, police officers recovered his missing firearm as well as other personal property in an adjacent building approximately six hours later. Investigations revealed that Respondent did not secure his firearm in a safe bolted to the floor. Rather, Respondent secured his firearm in a lock box on top of a safe in the master bedroom of his residence.

The Department's Case

The Department called Sergeant Alexander Crouch as a witness.

Crouch

Crouch, a 12-and-a-half year member of the Department currently assigned to the Transit Bureau Investigations Unit, conducted the investigation of Respondent's alleged misconduct. As part of his investigation, Crouch conferred with the 101 Precinct Detective Squad and the New York State Pistol Permit Section in order to verify Respondent's stolen firearm. The 101 Precinct Detective Squad informed Crouch that Simone Gardner was apprehended as the alleged burglar and that Respondent's firearm was recovered from one of Gardner's acquaintances.

At some point, Crouch conducted an official Department interview of Respondent. Crouch learned that Respondent's firearm was secured in a lock box on top

of his safe at his residence, which Crouch said merely described as black. Crouch did not review the lock box himself. Based on Crouch's training and experience, he believed that Respondent did not properly secure his off-duty firearm inside his residence. Crouch said that the proper way to secure one's firearm inside his residence is to follow the Department's recommendation that a firearm be locked within a safe that is bolted to the floor or some other area so that it cannot be carried away.

With regard to the recovery of Respondent's firearm, Crouch said that the detective squad conducted an investigation. The squad identified an acquaintance of Gardner who gave them consent to search her residence and therein recovered Respondent's firearm.

On cross-examination, Crouch admitted that Patrol Guide Section 204-08 does not specifically require that a police officer use a safe bolted to the floor as a means of safeguarding his firearm, but merely provides that a weapon must be safeguarded at all times. Crouch further revealed, however, that his superior officers recommended use of a bolted-down safe. He also said that to his knowledge Respondent was never instructed or directed to safeguard his firearm in a bolted safe.

Upon questioning by the Court, Crouch added that Respondent stated that his firearm was secured in a black Glock box that came with Respondent's firearm. On redirect examination, Crouch testified that he himself once purchased a Glock-26 which came in a black plastic box. Crouch explained that one had to put pressure to snap the top of the box shut. On re-cross examination, Crouch described that the first firearm he received from the Department came in a hard plastic box with no lock, but with a lock already like molded onto the box.

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Respondent's Case

Respondent testified in his own behalf

Respondent

Respondent, an 11-year member of the Department, is currently assigned to Transit District 30. Prior to his appointment to the Department, he was a senior researcher for 11 years at New York Hospital Medical Center in the Department of Physiology and Biophysics. In July 2009, Respondent resided in a completely enclosed single-level detached home in Far Rockaway, Queens. His house is located on a two-block wide street which resembles a dead end street.

Respondent testified that on July 7, 2009, he worked a paid detail. He returned home that night at about 1:00 a.m. on July 8, 2009, and immediately went to bed. At 5:00 a.m., Respondent woke up and prepared to go to the range to qualify with his new off-duty Glock. When he woke up, he noticed that his spare bedroom looked like someone "ransacked" it. Respondent immediately went to look for his weapon, which he kept in his master bedroom, and discovered that both his safe and firearm were missing. Respondent next called 911 to report that his weapon was stolen and that he was an off-duty police officer as well as the fact that he believed that ammunition was also stolen.

Police officers arrived at Respondent's residence approximately two minutes later. Respondent told the police officers that the rear window in his master bedroom was broken, which he always locked before leaving the house. Respondent later discovered

Detectives received information from some of Respondent's neighbors as to what they saw the night or afternoon before. One neighbor informed the police that he saw a young lady jump over Respondent's fence and come through the yard next door and then across the street into the building directly adjacent to his. Upon searching this building, detectives found Respondent's video camera, his holster, and parts of his gun cleaning kit, as well as his firearm and another one.

Respondent testified that once the firearm was found, he believes that the detectives kept the weapon, secured it, and tested it for fingerprints and DNA. After the investigation determined that the weapon was never fired or used during the time it was missing, Respondent received his weapon back.

Respondent stated that he purchased the off-duty Glock in May 2009. Prior to July 8, he secured the gun in the lock box in which it came inside his command locker. He explained that the plastic box has a handle and that when one opens the box the two parts of the handle come together and a lock is placed around that. Respondent testified that he kept a secured lock on there while his firearm was in the command.

On the day before the incident, in preparation for his visit to the firing range, Respondent brought the firearm home and placed it on the top of his safe in his master bedroom. He explained that he had a Sentry safe which was about 35 to 40 pounds and came with a key lock. Respondent, who lives alone, said that he believed he stored his weapon in a safe manner. He always locked his doors and windows at night, was never previously burglarized, and believed that he lived in a safe neighborhood. Respondent further testified that 11 years earlier the Police Academy training taught him to safeguard his weapon at all times, but never specified that he had to keep it in a safe.

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To the best of Respondent's knowledge,
as well as other crimes [Respondent Exhibit A is a copy of the indictment] Since the day of the incident, Respondent has bolted a safe to the floor and has installed a burglar alarm at his house

On cross-examination, Respondent stated that he qualified for firearms tactics twice a year for 11 years, and that during that time he was instructed on how to safeguard his weapon Respondent testified that he was mainly instructed to keep weapons locked away from children No one, however, told him to place his weapon in a safe in his home Respondent said that he purchased the Sentry safe to safeguard his documents At that time, he had not yet purchased his first off-duty weapon Respondent further revealed that he placed a small key lock on the plastic box in which he kept his off-duty weapon

Respondent stands charged herein with failing to safeguard his off-duty firearm, to wit said firearm was in its manufacturer's box located on top of his safe Respondent is found Guilty as charged

Evidence adduced at trial established that Respondent, an 11-year service, despite qualifying for firearms tactics twice a year for 11 years and being instructed on how to safeguard his weapon, testified before this Court that he was taught

On the date Respondent's house was burglarized, he secured his firearm in the case the Glock came in. It was a plastic box where the two handles come together and he placed a secure lock on it. He then placed the plastic box on top of a 35 to 40 pound Sentry safe. Respondent testified that he lives alone, always secured his doors and windows, was never the victim of a burglary, and believed he lived in a good neighborhood.

While all of this may be true, Respondent did not secure his firearm in such a manner that anyone entering his home could not easily walk away with it. Respondent's house was burglarized and once the investigation ensued, a neighbor stated that he saw a young lady jump over Respondent's fence, come through the yard next door, and then across the street into the building directly adjacent to his. It was established that the female burglar, once breaking a window, was easily able to walk off with the firearm in a plastic box sitting on top of a 35 to 40 pound safe. The investigation further revealed that the safe and its contents were also stolen.

Respondent cited Disciplinary Case Nos. 83886/08 and 84832/08 as his defense. In that matter, this Court noted that Patrol Guide 204-08 requires that members of the service safeguard their firearms at all times. There is no requirement that one use a safe to safeguard a firearm, or that a safe, if used, be bolted to the floor. In that matter, this Court found two probationary police officers Not Guilty of failing to safeguard their firearms. Both members, living together, placed their service revolvers and one off-duty firearm in a 100 pound safe. The safe was made of material that they testified to, was not equipped for being bolted to the floor. They had help and placed the safe in the closet of

their bedroom. The safe was also equipped with a key lock and a combination lock. Their house was burglarized and the safe was stolen.

The Court held that Respondents in that matter were Not Guilty of failing to safeguard their firearms because they stored their firearms in a locked safe which weighed over 100 pounds and they anticipated that the firearms would be secure when they stored them in that manner. However, the Court noted, in essence, that the issue of failing to safeguard is determined on a case-by-case basis because every instance where the firearm was taken as a result of a burglary requires an examination into the circumstances surrounding the theft. The Court cited as an example, Disciplinary Case No. 79799/04 where a 17-year member of the Department with one prior discipline forfeited 15 vacation days for failing to safeguard his firearm. In that instance that Respondent stored his firearm under a pile of sheets and pillows in his bedroom closet, which was stolen when the Respondent's apartment was burglarized.

Not only could Respondent's cited case be distinguished because those Respondent s placed their firearms in a 100 pound safe but also because this Respondent never put his firearm in the safe at all. In this case, Respondent left his firearm in the plastic box it came in on top of a 35 to 40 pound safe and both the firearm and the safe were stolen during a burglary. The Court notes that as a result of the manner in which Respondent secured his firearm, any house guest could have walked off with his firearm. Even though Respondent testified that he lives alone there could be a situation where he entertains a house guest.

Accordingly, Respondent is found Guilty as charged.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined, see *Matter of Pell v Board of Education*, 34 N Y 2d 222 (1974)

Respondent was appointed to the Department on September 29, 2000
Information from his personnel folder that was considered in making this penalty recommendation is contained in the attached confidential memorandum

Respondent has been found Guilty of failing to safeguard his firearm
Respondent asked for a penalty of less than 10 vacation days if a penalty was to be imposed Respondent noted that once the theft was discovered 911 was called and the weapon was recovered within six hours However, the quick recovery has little to do with the manner in which the weapon was stored in the first place Respondent never placed his firearm in the safe, but left it on top of the safe in a plastic box

The Assistant Department Advocate asked for a penalty of the forfeiture of 20 vacation days To determine an appropriate penalty the Court looked to prior, recent cases on this issue In Disciplinary Case No 85521/09 signed January 12, 2010, an eight-year police officer with no prior disciplinary record negotiated a penalty of 20 vacation days for failure to safeguard his firearm In that case, Respondent's off-duty firearm was stored in his Department locker and when he went to retrieve it for the annual gun inspection, he stated it was missing There were no signs of vandalism or damage to the lock or locker In Disciplinary Case No 85517/09 signed January 26, 2010, a 19-year police officer with no prior disciplinary record negotiated a penalty of 20 vacation days for failure to safeguard his off-duty firearm In that case, Respondent

could not locate his off-duty firearm for the annual inspection. The weapon was stored in his locker and there was no evidence of the lock being damaged or vandalized.

Accordingly, the Court agrees that a penalty of the forfeiture of 20 vacation days is warranted.

Respectfully submitted,



Claudia Daniels-DePeyster
Assistant Deputy Commissioner – Trials

APPROVED



NOV 15 2011
RAYMOND W. KELLY
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From Assistant Deputy Commissioner – Trials
To Police Commissioner
Subject CONFIDENTIAL MEMORANDUM
POLICE OFFICER LYNDON PROVIDENCE
TAX REGISTRY NO 927377
DISCIPLINARY CASE NO 86552/10

In 2008, Respondent received an overall rating of 4.0 'Highly Competent' on his annual performance evaluation. In 2009, he received a rating of 3.5 'Above Competent' and in 2010 he received a rating of 4.0 'Highly Competent'. Respondent has not received any medals in his career to date.

[REDACTED]

Respondent has no prior formal disciplinary record.

For your consideration


Claudia Daniels-DePeyster
Assistant Deputy Commissioner – Trials